



STATE OF MISSISSIPPI

DEPARTMENT OF FINANCE AND ADMINISTRATION

FORMAT AND GUIDELINES FOR PROPOSALS

Water Treatment Chemicals

RFx: 3130002364



State of Mississippi
Format and Guidelines for Proposals
Water Treatment Chemicals
RFx: 300000000

Manufacturers interested in entering into a nonexclusive, negotiated contract for the commodity listed above with the State of Mississippi, Department of Finance and Administration, Office of Purchasing, Travel and Fleet Management may submit a proposal electronically through the State of Mississippi e-procurement system which must include all information requested in this document. No costs or expenses associated with providing this information in the required format shall be charged to the State of Mississippi. All required documents must be attached as separate documents. It is the responsibility of the Manufacturer to verify that all the requirements for submitting the proposal have been fulfilled.

1. Registration with the State of Mississippi E-Procurement System

Mississippi's Accountability System for Government Information and Collaboration (MAGIC) is the state's e-procurement system. **Please note: It shall be the responsibility of each Manufacturer to ensure that your profile is current in our e-procurement system.** The website to register as a vendor with the State of Mississippi is: <https://www.dfa.ms.gov/vendors>. If you currently have a State Contract for the commodity listed above and you are unsure of your vendor number, please contact Shakrita Fields at shakrita.fields@dfa.ms.gov or 601-359-9263. *All Manufacturers must verify their registration and ensure that a current W9 is submitted to OFMMAGIC@dfa.ms.gov.*

State contract Manufacturers that do not have a MAGIC User ID and password, an email should be sent to mash@dfa.ms.gov. Enter "Vendor ID Request" as the email Subject, and include the following information in your email:

- MAGIC Vendor Number
- Vendor Name
- Contact Name
- Contact Email Address
- Contact Phone Number

For online learning instructions on submitting your proposal electronically, select "Training/Documentation" from the following link: <https://www.dfa.ms.gov/vendors>.

2. Specifications

The Manufacturer shall provide all products and services in strict accordance with the specifications outlined below. These specifications represent the minimum acceptable standards of quality, construction, performance, and serviceability. By submitting a proposal, the Manufacturer acknowledges and agrees that all items furnished under the resulting contract must meet or exceed these specifications. Failure to supply products that conform to the

required specifications may result in product rejection, contract suspension, or contract termination at the discretion of the State of Mississippi.

2.1. Item Requirements

The Vendor should provide a comprehensive line of water treatment chemicals, products, and related services, including but not limited to boiler water treatment chemicals, cooling tower treatment chemicals, closed-loop treatment products, corrosion and scale inhibitors, biocides, condensate treatments, pH control products, water softener chemicals, testing reagents, and related water treatment supplies suitable for governmental and commercial facilities. Products and services proposed should be capable of supporting a variety of water treatment systems, equipment types, and operational requirements.

2.1.1. Manufacturing and Compliance

All water treatment chemical products furnished under this contract shall meet or exceed applicable industry and manufacturer standards for quality and performance. The manufacturer shall furnish and service water treatment chemicals, products, and related equipment as necessary to support the treatment program for the entity's system, when requested by the entity.

2.1.2. Minimum Service Requirements

The manufacturer should provide routine water treatment monitoring, testing, and related support services for all participating entities.

2.1.2.1. Service Personnel

The manufacturer shall provide technically trained personnel to perform on-site service visits for each participating entity's location.

- A minimum of one (1) scheduled service visit per month shall be provided for each location, unless otherwise approved by the entity.
- Emergency service calls shall be responded to within twenty-four (24) hours of notification by the entity.
- The manufacturer shall provide at least two (2) business days' advance notice prior to scheduled service visits, unless visits are routinely scheduled to occur at the same time each month. This notice is intended to ensure that appropriate entity personnel are available during the visit.

2.1.2.2. Testing and Analysis Services

The manufacturer shall maintain, or have access to, a qualified testing laboratory capable of performing water analysis associated with the systems covered under this contract.

- The manufacturer shall provide water sampling, testing, analysis, and treatment recommendations as necessary to maintain proper system operation and water quality.
- Water samples may be collected by the manufacturer during service visits or submitted by the entity, as applicable.
- The manufacturer shall provide written test results and recommendations to the entity following analysis. Recommendations may include, but are not limited to, chemical treatment adjustments, system maintenance recommendations, and operational guidance.

2.1.3. Product Labels and Safety Data Sheets

The manufacturer shall provide product labels, technical literature, or manufacturer documentation for all proposed products. Documentation shall include, at a minimum: Product identification and intended application; recommended usage instructions; dilution or mixing rates, where applicable; and any applicable handling, storage, or safety precautions.

The manufacturer shall provide current Safety Data Sheets (SDS) for all proposed chemical products in accordance with applicable Occupational Safety and Health Administration (OSHA) Hazard Communication Standards. SDS documentation shall be provided to any participating entity upon request and shall include all information necessary for the safe handling, storage, use, and disposal of the products.

3. Proposal Requirements

3.1. Proposal Letter

Manufacturers should submit a signed letter with the proposal from an authorized representative indicating the Manufacturer's interest in entering a State Contract for the items being proposed. This letter must include:

- Manufacturer's name
- Location Address
- Mailing Address
- Telephone Number
- Email Address
- Website Address, (if applicable)
- Name of authorized representative submitting proposal.

By signing this letter, the Manufacturer is certifying that they are authorized to do business in the State of Mississippi, that neither the Manufacturer nor any potential subcontractors are

debarred or suspended from submitting bids for contracts issued by any political subdivision or agency of the State of Mississippi, and that it is not an agent of a person or entity that is currently debarred from submitting bids for contracts issued by any political subdivision or agency of the State of Mississippi.

3.2. Dealers' List

The Office of Purchasing, Travel and Fleet Management prefers that these contracts are established with the Manufacturer with all authorized distributors being listed. This dealers' list and associated requirements are included as **Attachment A**. Please provide a dealers list using the Excel spreadsheet. The file size cannot exceed 100 MB. It is the Manufacturer's responsibility to keep this list updated during the contract period. Dealers/Distributors must be registered in the State's e-procurement system.

3.2.1. Minority Vendor Status

Vendors should indicate if they or any of the distributors they list are considered Minority Vendors by placing "MV," for Minority Vendor, in the appropriate column on the spreadsheet. Minority Vendor means a business concern that (1) is at least 51% minority-owned by one or more individuals, or minority business enterprises that are both socially and economically disadvantaged, and (2) have their management and daily business controlled by one or more such individuals as ascribed under the Minority Business Enterprise Act and the Small Business Act 15 USCS, Section 637(a).

3.3. Price List

Vendors are required to provide a Price List Spreadsheet with pricing in an Excel format. A price list and associated requirements are included as **Attachment B**. This format is not required but is highly recommended. *All items included on the Price List must reflect a discount from the manufacturer's suggested retail price (MSRP) to be eligible for consideration under the State contract.* The Price List shall clearly identify the MSRP, the State's discounted price, and the corresponding percentage discount for each item offered.

If the Manufacturer is listed on a GSA contract, a copy of the current price list must be submitted. Discounts shall be competitive when compared to prices and discounts received by the GSA, other state governments, and large volume commercial customers.

3.4. Internal Catalog Pricing Spreadsheet and Product Information

Manufacturers are required to complete the attached internal catalog spreadsheet(s) in their entirety. This internal catalog spreadsheet, included as **Attachment C**, must include the requirements specified herein and shall conform to only the best commercial standards and quality materials. *All items listed on the Internal Catalog Spreadsheet (ICS) are required to*

have a discount on the Manufacturer's suggested retail price (MSRP) to be considered for a State Contract.

3.5. Purchase Summary

If the Manufacturer currently has a contract with the State of Mississippi, a purchase summary is required. Please complete the purchase summary included as **Attachment D**, for the current contract period starting October 1, 2025. This purchase summary must be attached with the proposal. The file size cannot exceed 100 MB. The purchase summary should only include sales to state agencies and governing authorities. **Please do not include sales to non-governmental entities.**

3.6. Purchase Summary Attestation

Each Manufacturer that submits a purchase summary must also complete and sign the **Purchase Summary Attestation Form**, provided in **Attachment E**, certifying that the reported sales information is true, accurate, and complete to the best of their knowledge. Failure to submit the required Purchase Summary and signed Attestation Form will result in disqualification from consideration or non-renewal of the contract.

3.7. Proposal Deadline

This contract is effective October 1st through September 30th. Therefore, proposals for contracts must be received by 3pm CDT July 15th. ***Any proposal received after this deadline will not be considered.***

4. General Conditions

4.1. Term

The term of this agreement shall commence on the contract effective date and shall terminate on September 30, 2027, or one year from the contract effective date with no additional renewal periods.

4.2. Length of Price Guarantee

Pricing shall be firm for a twelve (12) month period. Price increases are ***not*** allowed during the term of the contract.

4.3. Transportation Terms

All freight and shipping costs are the responsibility of the Manufacturer and are not reimbursable. All items must be transported F.O.B Destination.

4.4. Payment Terms and Invoices

MS Code Section 31-7-305(3) allows a state entity to pay invoices within forty-five (45) days without penalty.

The State requires the Manufacturer to submit invoices electronically throughout the term of the agreement. Manufacturer invoices shall be submitted to the state agency using the processes and procedures identified by the State. Payments by state agencies shall be made and remittance information provided electronically as directed by the State. The Manufacturer understands and agrees that the State is exempt from the payment of taxes. All payments shall be in United States currency.

4.5. Addendum Period: Additions/Deletions

4.5.1. Addendum Periods

Additions or deletions will be permitted **only during designated addendum periods**. A **first addendum period** will be allowed during the **first five (5) business days of the contract**, beginning on the contract start date. This initial period allows Manufacturers to make limited additions or deletions necessary to align with initial contract implementation. A **second addendum period** will be held **February 1st through February 15th**, during which Manufacturers may submit additions or deletions for changes to become **effective April 1st**. **Price changes are not allowed during the addendum periods.**

4.5.2. Addendum Submission Requirements

When requesting additions or deletions, the Manufacturer shall submit a formal written request electronically (via email to the analyst listed in this proposal). The request must include:

- A cover letter identifying the requested additions or deletions.
- A list of all items proposed for addition or deletion.
- All required documentation as outlined in the Proposal Requirements for any new items.
- Product literature supporting the request.

When adding a distributor to the original distributor's list, the new distributor's information shall be submitted electronically (via email) using the attached Excel spreadsheet with read/write capabilities. The submission must include the distributor's full name, address, contact person, telephone number, fax number, and email address. The distributor must be registered in the **State of Mississippi's e-procurement system** prior to submitting a request for addition. See Section 1.

4.6. State of Mississippi Terms and Conditions

By submitting a proposal in response to this solicitation, the Manufacturer acknowledges, accepts, and agrees to comply with the **State of Mississippi's Standard Terms and Conditions**, as outlined in **Attachment F**. Submission of a proposal shall constitute an acknowledgment that the Manufacturer has read, understands, and agrees to be bound by all applicable provisions contained therein. Failure to comply with these terms and conditions may result in rejection of the proposal or termination of any resulting contract.

4.7. Sample contract

Manufacturers are strongly encouraged to carefully review the **Sample Contract** provided in **Attachment G** prior to submitting a proposal. The Sample Contract outlines the general terms, conditions, and requirements that will govern any contract awarded as a result of this solicitation.

Submission of a proposal shall constitute acknowledgment by the Manufacturer that they have reviewed the Sample Contract and are prepared to accept its provisions, subject to any negotiated modifications approved by the State of Mississippi. The final executed contract will be substantially similar in form and content to the Sample Contract included in Attachment G.

4.8. Award of Contract

New contracts will be awarded to all Manufacturers that submit proposals and are in compliance with this format and are proposing competitive prices. Any requested information not submitted may be cause for the contract proposal to be denied. **If a Manufacturer currently has a contract with the State of Mississippi and the submission is not received by the required submission date, the contract will expire, and you will be denied a new contract.**

If you have any questions concerning this document, please contact the contract analyst listed below.

Shakrita Fields, Contract Analyst
Office of Purchasing, Travel, and Fleet Management
701 Woolfolk Building, Suite A
501 North West Street
Jackson, MS 39201

Email- shakrita.fields@dfa.ms.gov
Phone- 601-359-9263

If you need assistance navigating MAGIC or experience technical issues, please contact the MMRS Help Desk:

Phone: 601-359-1343

Email: mash@dfa.ms.gov